

SYNTHETIC TRAINING RECORD — FICTIONAL PARTIES, PEOPLE, AGENCIES, SYSTEMS, IDENTIFIERS, AND EVENTS — NOT A REAL FILING OR CYBERSECURITY GUIDE COUNTERFACTUAL APPELLATE BRANCH — NEVER FILED OR ENTERED ON THE ACTUAL DOCKET — ISOLATED DOCKET: SYN-CA4-26-CV-4106-CF-NEVER-OCCURRED

Never-Filed Sealed Counterfactual Opening Brief

Court: United States Court of Appeals for the Fourth Circuit **Case:** Open Grid Archive v. United States Department of Energy **Isolated docket:** SYN-CA4-26-CV-4106-CF-NEVER-OCCURRED

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This controlled opening brief presents Open Grid’s objections within the corrected-record hypothetical. The questions concern the outer boundary of 7(E), the sufficiency of a limited 7(F) presentation, the completeness of the renewed segregation analysis, and the narrowness of the assumed sealing findings. The legal positions are also available in the public counterpart.

The sealed text uses six invented labels solely to show asserted field placement. Condition-Aster, Sequence-Beryl, Value-Cinder, Role-Dovetail, Safety-Echo, and Channel-Fable contain no operational information. They cannot identify a real event, employee, system, contact route, threshold, or response act.

Open Grid accepts the isolation notice as the governing exercise premise but does not concede the legal conclusions DOE draws. The Court must match each retained segment to a statutory element and independently assess segregability and access. The controlled view helps that comparison without making the branch a cyber guide.

No portion of this document belongs to the actual appeal. Access is limited to a verified disclosure-specific session and ends upon revocation or expiration.

Review Authority and Branch Boundary

Final-decision jurisdiction arises from the single district judgment entered January 2, 2026 and the timely notice challenging it. The hypothetical correction neither creates another originating-court ruling nor changes the certified district chronology. It supplies only the assumed evidentiary and sealing propositions needed for the training comparison.

Exemption determinations are reviewed anew, and DOE bears the burden of justification. The Court may rely on declarations and functional indexes when they are detailed, nonconclusory, and consistent with the record. It must separately determine whether nonexempt portions can be released. Judicial-record closure is evaluated under public-access principles rather than treated as a consequence of FOIA withholding.

This controlled branch cannot draw facts from the actual appellate disposition or from mutually exclusive later training paths. It may consider the actual district history held constant by the premise and the never-filed submissions made earlier on this isolated docket.

Open Grid asks for exact issue-by-issue treatment. A supported implementation relation may remain withheld even if a different safety category fails. A valid exemption does not decide segregation of adjacent administration. A sound FOIA ruling does not automatically justify sealing the related judicial filing.

Collection and Production Facts

The agreed request covered approved Grid Sentinel decision trees, matrices, coordination appendices, and governance instruments effective within the specified period. Drafts, routine communications, live incident records, technical configurations, access data, and genuine personal contacts were outside scope. Those exclusions are not challenged.

Search work in three invented repositories generated 16,842 initial hits. Deduplication left 1,284 candidates; forty-six received substantive custodian review; twelve final records with 200 source pages qualified. Their family totals are sixty, fifty-four, sixty-four, and twenty-two pages.

DOE withheld three complete records totaling fifty-four pages, partially produced seven totaling 124, and fully disclosed two governance records totaling twenty-two. The 146-image production contained sixty-eight images without a blackout and seventy-eight with at least one deletion.

Open Grid agrees that this methodology was reasonably calculated to find the clarified records. The appeal targets the remaining withholdings and the judicial treatment of them. Numerical consistency is useful evidence of processing, but no count proves that a particular segment exposes Condition-Aster, Sequence-Beryl, Value-Cinder, or a human-safety function.

Nature of the Hypothetical Corrections

The exercise retains DOE's original law-enforcement-purpose and implementation account for 7(E). It assumes a revised 7(F) worksheet that groups only function-bearing segments and states a disclosure-to-danger pathway. It also assumes a contextual line review and document-specific sealing reasons.

The same supplemental production remains operative: seventeen additional passages on eleven replacement images, divided as six double-passage images and five single-passage images. Those replacements alter visible text, not the twelve-record universe, 200-page total, or 146-image production count.

The assumed sealing ruling evaluates each controlled counterpart, preserves independent public prose, and chooses a finite period ending thirty days after mandate unless supported reconsideration occurs. Default access reveals only the public side; the controlled asset is verified anew for each authorized session.

These corrections are not admissions that every retention was lawful. A worksheet entry still must correspond to the source function. A line-review conclusion still must account for meaningful administration. A sealing finding still must be narrowly tailored to the individual judicial passage. Open Grid presses those legal limits without requesting the dummy labels' supposed authentic analogues.

Legal Boundary of Exemption 7(E)

The parties agree that exercise playbooks aimed at preventing or responding to unlawful attacks can meet Exemption 7's law-enforcement-purpose threshold. *Grey v. Alfonso-Royals* further distinguishes techniques and procedures from guidelines: nonpublic implementation of the former is protected, while the latter is tied to the statutory circumvention language.

That framework requires classification of the withheld content, not the record's title. Condition-Aster denotes a dummy predicate and Sequence-Beryl an abstract relation. Value-Cinder denotes an invented guideline field. Their presence permits controlled discussion of type, but none demonstrates that adjacent prose shares the field's function.

Ordinary ownership statements, approval dates, version markers, revision explanations, and recordkeeping requirements do not reveal a technique when they remain intelligible after the dummy value is removed. A relationship can be withheld if its position itself exposes implementation. A guideline can be retained if the agency supports a reasonable circumvention prediction tied to the genuine value.

Open Grid therefore contests any reasoning that moves from an integrated document to total exemption without the intermediate segment analysis. The corrected premise narrows the issue and should also constrain the relief.

Controlled Application of 7(E)

The decision-tree example places Condition-Aster beside Sequence-Beryl to show the agency's asserted predicate-and-order relation. Value-Cinder appears where the worksheet identifies a guideline category. These words are deliberately meaningless; the Court examines only the function DOE attributes to their authentic counterparts.

Open Grid accepts that disclosure of a genuine predicate joined to its next branch may expose a nonpublic procedure. It also accepts that a genuine value can be a protected guideline when the stated circumvention inference is reasonable. The dispute is whether blank space, headings, and surrounding directions necessarily expose those relationships.

The sealed layout demonstrates that some sentences retain independent meaning. A directive to preserve a superseded entry says nothing about Condition-Aster. A notation that a second reader approved a record does not reveal Sequence-Beryl. A revision caption can remain useful without Value-Cinder. Those distinctions support more exact separation.

DOE may not use the controlled format to obscure its burden. The inert words do not prove sensitivity and their repetition has no coded significance. The Court should sustain only the true implementation relation and supported guideline category described in the corrected worksheet.

Rules Governing Physical-Safety Withholding

Section 552(b)(7)(F) permits protection when disclosure could reasonably be expected to endanger an individual's life or physical safety. Identification by name is unnecessary, but the predicted danger must involve some person and must be connected to the information withheld.

Categorical proof remains possible after document-level examination establishes functional groups. *Zaid* requires categories that have meaningful content rather than broad labels untethered to the record. *Electronic Privacy Information Center* confirms that a safety determination does not erase the need to segregate nonexempt matter.

The corrected premise gives DOE a stronger foundation. Role-Dovetail represents an assignment type; Channel-Fable represents a contact category; Safety-Echo represents a safeguard reference; and Value-Cinder can represent an escalation placement when linked to a human function. The worksheet states a distinct causal theory for each.

Open Grid's objection is one of reach. A field must actually embody the asserted function. The words surrounding Role-Dovetail are not all assignments, and a heading introducing Safety-Echo is not automatically a safety value. The reasonable-expectation standard permits context-sensitive judgment, not exemption by proximity.

Controlled Review of the Limited 7(F) Showing

DOE says authentic disclosure of Role-Dovetail could expose where protective responsibility rests, enabling interference with that human function. It says Channel-Fable could direct misdirection toward the function, Safety-Echo could identify the safeguard an interferer would target, and a human-linked Value-Cinder could reveal when protective involvement becomes relevant.

Those theories identify both a function and an expected harm without naming an individual. They are adequate only for segments that carry the described information. The corrected page worksheet is essential because the same label type may appear in a purely administrative context elsewhere.

Overlap also must be real. A segment may reveal both Sequence-Beryl and Role-Dovetail, but checking two exemptions does not establish two rationales. The court should require the implementation explanation and the physical-safety explanation to stand independently before sustaining both.

This controlled page supplies no actionable fact. Label order, capitalization, and repetition are arbitrary. The public brief replaces the labels with field notices, allowing any reader to understand the legal disagreement. Open Grid seeks disclosure only of meaningful text that does not reveal the genuine function DOE has described.

Adequacy of the Functional Index

Meaningful review requires more than naming a record and exemption. The agency should correlate the retained material to a page or segment, describe its function at a safe level, identify the governing category, and explain the anticipated harm. The explanation must be consistent with visible context and declarant knowledge.

The revised index now performs those tasks in substantial part. It separates predicates, order, guideline fields, assignments, contact categories, safeguards, and escalation placement. It also distinguishes the technique-or-procedure rationale from the guideline circumvention prediction and the human-safety rationale.

Open Grid maintains that the court must evaluate, rather than merely recite, those correlations. A statement that text near Sequence-Beryl would reveal structure should explain the relational feature. A statement concerning Safety-Echo should identify why the authentic reference creates the predicted risk. Safe abstraction can do so without revealing content.

The controlled counterpart assists review because the judge can observe asserted placement using meaningless tokens. It does not relieve DOE of proof, and it cannot transform a generic explanation into a specific one. The sufficiency ruling should be limited to the segments for which the revised account genuinely enables adversarial testing.

Segregability Standard and Record Structure

An agency must release a reasonably segregable nonexempt portion after removing exempt information. Its declarations should establish a real review rather than offer a formulaic conclusion. *Rein* requires enough detail for the court to determine that additional useful text is not being withheld unnecessarily.

The corrected protocol evaluates standalone meaning, positional disclosure, headings, and detachable coordination language. It preserves an audit entry for every decision. That method properly recognizes that a record can contain both protected relations and ordinary administration.

The playbooks visibly include title blocks, version history, approval fields, general purpose statements, revision explanations, documentary ownership, quality-review directions, and closure notation. Controlled values such as Condition-Aster or Role-Dovetail do not automatically make those elements inseparable. Conversely, a fragment whose location exposes Sequence-Beryl may be retained even if its words look harmless alone.

Open Grid asks for an evidence-based application of this distinction. The number of released pages is relevant, but the ultimate inquiry is whether every remaining portion was tested and whether the stated reason matches the source structure. The district court's finding should be affirmed only to that supported extent.

Results of the Renewed Line Review

The supplemental pass added seventeen passages to eleven previously produced images. Six replacements contain two new passages and five contain one. Four decision-record images supply six passages; two matrix images supply three; three current-appendix images supply five; and two prior-appendix images supply three.

Released text covers documentary ownership, neutral captions, revision status, exercise recordkeeping, broad coordination, closure administration, and approval context. The worksheet retains Condition-Aster and Sequence-Beryl only where their relationship would be exposed, Value-Cinder where a supported guideline remains, and Role-Dovetail, Safety-Echo, or Channel-Fable where the limited safety theory applies.

This accounting demonstrates that reviewers reversed some earlier decisions. That candor strengthens the process, but it also shows why fully withheld records deserve close attention. The Court should confirm that their title and administration cannot be separated merely because protected relations recur throughout the body.

The replacement images do not create another responsive record and do not change original pagination. Their relevance lies in the reasoning and released substance. Open Grid seeks a ruling keyed to that record rather than a presumption arising from the release count.

Controlled Sealing Principles

Sealing judicial records demands a justification independent of an agency's FOIA position. *Company Doe v. Public Citizen* requires notice, identification of the public-access source, consideration of alternatives, and findings sufficiently specific to support closure. First Amendment access requires a compelling interest and narrow tailoring when it applies.

The assumed order proceeds document by document. It leaves public briefs available, confines closure to controlled counterparts, sets a thirty-day post-mandate endpoint, and permits earlier review. The certificate identifies eligible participants, while actual viewing still depends on a session-specific grant and byte verification.

Those safeguards are materially narrower than sealing a filing group as a whole. Yet the judge must still connect closure to each passage. The existence of Channel-Fable in one section cannot justify hiding unrelated procedural analysis. The public explanation must convey the reasoning even where the genuine value remains protected.

Open Grid supports the public-only default, stable logical references, deferred content-addressed verification, and immediate revocation. It argues that technical controls follow, rather than replace, the substantive access findings. Narrow sealing is proper only when both parts of the analysis are satisfied.

Disposition Requested on the Corrected Record

The Court should acknowledge the strength and limits of the premise. Authentic Condition-Aster and Sequence-Beryl relationships may remain withheld when they constitute nonpublic implementation detail. A genuine Value-Cinder guideline may remain when the circumvention prediction is supported. Those conclusions need not extend to every adjacent sentence.

Limited 7(F) protection may apply where Role-Dovetail, Channel-Fable, Safety-Echo, or a human-linked escalation value carries the specific function described. The Court should reject use of those categories for neutral administration. It should verify that dual-exemption entries contain two independent grounds.

The segregability ruling should account for the seventeen releases and require disclosure of any other meaningful administrative portion not covered by the corrected explanations. The sealing ruling should remain only as narrow as its passage-specific findings and public counterpart.

Open Grid requests reversal or limited remand for any unsupported residual segment. That remedy would not order disclosure of material already sustained under 7(E), would not merge this branch with the actual appeal, and would not expose a real cyber-response fact.

Controlled Conclusion and Attestation

The corrected hypothetical presents the agency's best supported account, but burdens of proof and public access remain judicial obligations. Functional detail justifies functional relief. It does not authorize whole-record or whole-filing closure where ordinary text can stand alone.

Open Grid asks the Court to preserve legitimate protection for authentic predicates, ordering, qualifying guidelines, and narrowly supported human-safety fields while requiring exact segregation and passage-specific sealing. The judgment should identify each distinct target and avoid treating one valid rationale as a substitute for another.

Every controlled word in this brief is one of six inert labels. None corresponds to a real source value. The public counterpart independently states the argument with descriptive notices. Revocation of this session removes the controlled view without changing any stable public reference or legal submission.

Tamsin Roe certifies that the controlled logical source has fourteen pages and matches the public brief's subjects. Service occurred only within the isolated exercise system on March 6, 2026. The document never appeared on the actual docket.

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